

COMPLAINT NO. 1061-20-0128

IN THE MATTER OF

JENNIFER DAWSON, LPC

§ **BEFORE THE TEXAS BEHAVIORAL**
§ **HEALTH EXECUTIVE COUNCIL**
§
§ **THE TEXAS STATE BOARD**
§ **OF EXAMINERS OF**
§ **PROFESSIONAL COUNSELORS**

AGREED ORDER

Pursuant to the authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(e), the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order with the following Findings of Fact, Conclusions of Law, and Order of the Council, which have been approved and accepted by **JENNIFER DAWSON** ("Respondent") and which constitutes a full settlement and compromise of the complaint(s) currently pending against Respondent before the Council in the above-referenced and numbered matter(s).

FINDINGS OF FACT

1. Respondent is licensed as a professional counselor (#75054) in the State of Texas and is therefore subject to the jurisdiction of the Council.
2. During August 2019 through October 20, 2019, Respondent failed to maintain professional boundaries by engaging in a nontherapeutic relationship with a client including sexual misconduct.
3. Respondent failed to cooperate with the Council investigation of this matter by failing to file a written response and failing to provide all requested documentation regarding the matter despite being served with written requests in August 2020 and May 2021.
4. Respondent failed to maintain complete and accurate records regarding a client with whom she engaged in sexual relations by failing to accurately make a note their final session during which they expressed mutual sexual attraction and by making a misleading chart note on a January 5, 2020, which mischaracterizes the ending of the therapeutic relationship.

CONCLUSIONS OF LAW

1. Respondent voluntarily received a license from the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 30 and 41.

2. Violation of the Council's Rules is unprofessional conduct and constitutes grounds for the imposition of sanctions under §§ 503.401, 507.301, and 507.351 of the Texas Occupations Code.
3. Based on the above Findings of Fact, the Council finds that Respondent violated Council Rules 22 Tex. Admin. Code § 681.41(l); 681.41(m)(1); 681.42(b)(1) (boundaries, sexual relations with a client); 22 Tex. Admin. Code §§ 681.46(d) and 884.30 (failure to cooperate with a Council investigation); and 22 Tex. Admin. Code § 681.41(q)(3, 5) (accurate record keeping).
4. This Agreed Order is a Settlement Agreement under the Texas Rules of Evidence and is not admissible for the purposes of civil litigation.

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Respondent, by signing this Agreed Order, hereby voluntarily and permanently **RESIGNS** her license as a professional counselor (#75054) in lieu of further adjudication by the Council on these matters.
2. Respondent shall return her license to the Council no later than fourteen (14) days after the date this order is ratified.
3. The Council will not consider an application for licensure from Respondent and Respondent agrees not to apply for any new license from the Council for ten (10) years from the effective date of this Order.

If Respondent seeks to apply for a license with the Council in the future, Respondent will be subject to conditions of eligibility to be imposed by the Council at that time.

WARNING

RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE §884.55 REQUIRING FURTHER DISCIPLINARY ACTION.

WAIVERS

On the underlying investigative file, Respondent has waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code

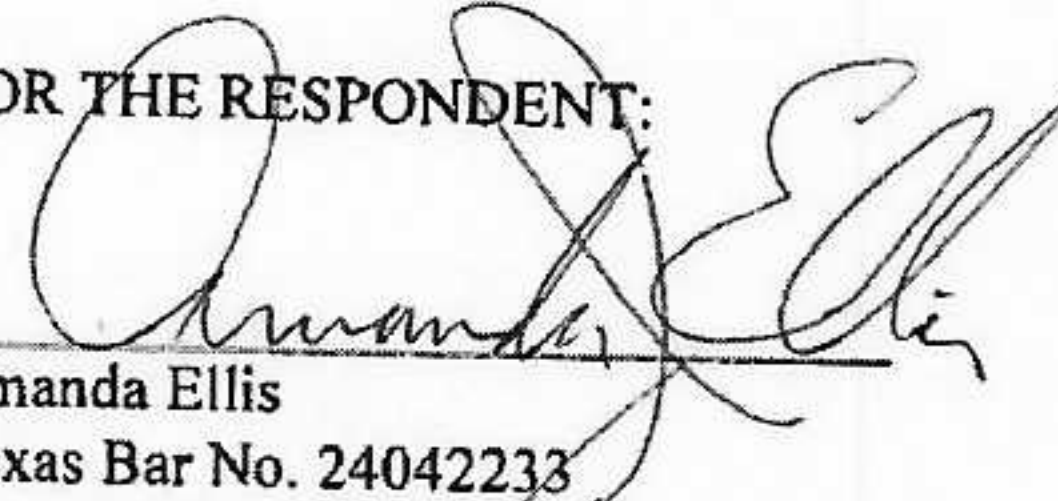
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Chapter 2001, in exchange for the conditions set out in this Agreed Order.

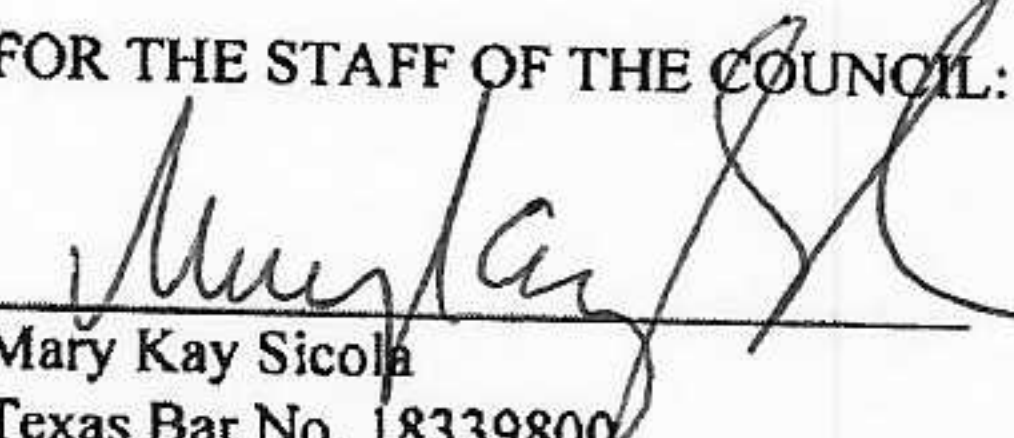
THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

FOR THE RESPONDENT:


Amanda Ellis
Texas Bar No. 24042233
Attorney for Respondent
Dalrymple, Shellhorse, Ellis & Diamond
901 S Mo Pac Expressway
Barton Oaks Plaza I, Ste. 280
Austin, TX 78746

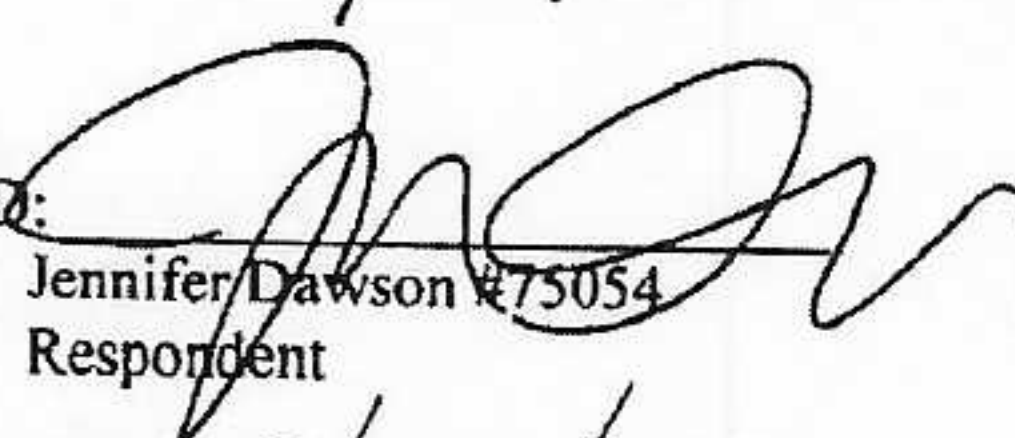
DATE SIGNED: 8/23/21

FOR THE STAFF OF THE COUNCIL:


Mary Kay Sicola
Texas Bar No. 18339800
Staff Attorney
Texas Behavioral Health Executive Council
333 Guadalupe, Ste. 3-900
Austin, Texas 78701

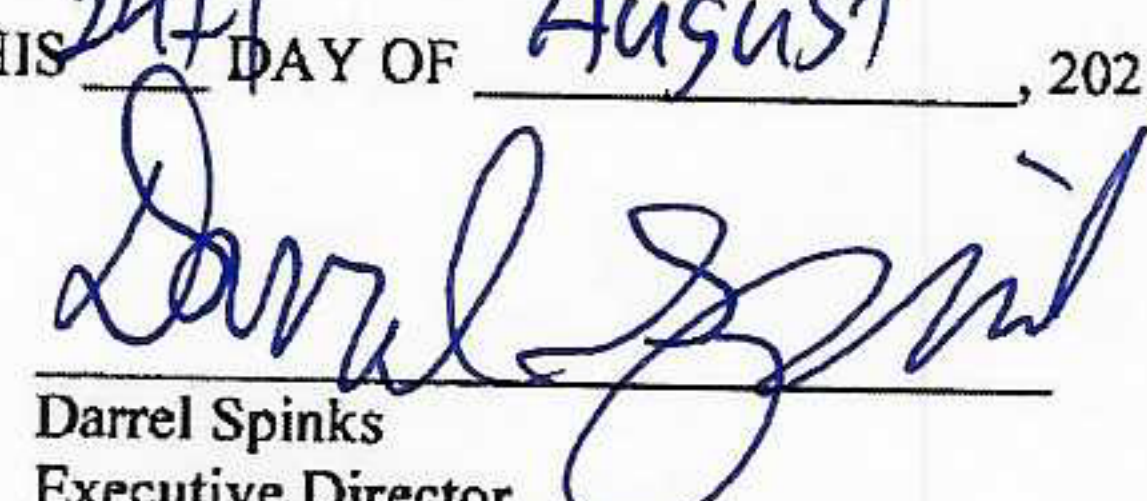
DATE SIGNED: 8/24/2021

AGREED:


Jennifer Dawson #75054
Respondent

DATE SIGNED: 8/23/21

APPROVED, RATIFIED, AND ENTERED THIS 24th DAY OF August, 2021.


Darrel Spinks
Executive Director
Texas Behavioral Health Executive Council